

22TRCV00273 22TRCV00273

County: los-angeles

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Case Number: 22TRCV00273 Hearing Date: July 15, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

DAVID R. ZIMMERMAN

, et al.;

Plaintiffs,

vs.

JAY H. ZIMMERMAN

, et al.;

Defendants.

Case

No.:

22TRCV00273

Hearing

Date:

July
15, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF

AND CROSS-DEFENDANT DAVID R. ZIMMERMAN'S MOTION FOR ATTORNEYS' FEES

(2)

defendants

and Cross-Complainants Jay H. Zimmerman and Thomas B. Zimmerman's request to refer
the motion to THE HONORABLE JUDGE Ronald F. Frank

MOVING PARTY: Plaintiff and Cross-Defendant,

David R. Zimmerman, in his individual capacity, in his capacity as trustee of
the David R. Zimmerman Family Trust, and derivatively on behalf of Sam Jadtar,
a California Limited Partnership, Mortgage Mart, Inc. and Realty Rentals, Inc.

RESPONDING PARTY: Defendants and Cross-Complainants, Jay H.
Zimmerman and Thomas B. Zimmerman

(1)

Plaintiff

and Cross-Defendant David R. Zimmerman's Motion for Attorneys' Fees is GRANTED
in the reduced amount of \$142,303.00 pursuant to Civil Code section 1717 and
Code of Civil Procedure sections 1032 and 1033.5.

(2)

Defendants

and Cross-Complainants Jay H. Zimmerman and Thomas B. Zimmerman's Request to
Refer the Motion to the Honorable Judge Ronald F. Frank is DENIED.

The Court considers the moving

papers filed on June 17, 2026, the opposition brief filed on July 1, 2026, and the reply brief filed on July 8, 2026.

BACKGROUND

Factual Background

On April 11, 2022, plaintiff

David R. Zimmerman, in his individual capacity, in his capacity as trustee of the David R. Zimmerman Family Trust, and derivatively on behalf of Sam Jadtar, a California Limited Partnership, Mortgage Mart, Inc., a California Corporation, and Realty Rentals, Inc., a California Corporation ("Plaintiff") filed the instant action against defendants Jay H. Zimmerman and Thomas B. Zimmerman and nominal defendants Sam Jadtar, a California Limited Partnership, Mortgage Mart, Inc., a California Corporation, and Realty Rentals, Inc., a California Corporation.

On April 3, 2024, Plaintiff

filed a First Amended Complaint ("FAC") that included the following causes of action: (1) Dissolution of Limited Partnership (as to Sam Jadtar, LP); (2) Dissolution Of Corporation (as to Mortgage Mart, Inc.); (3) Dissolution Of Corporation (as to Realty Rentals, Inc.); (4) Breach Of Fiduciary (derivatively on behalf of nominal defendants Mortgage Mart, Inc. And Realty Rentals, Inc.); (5) Corporate Waste (derivatively on behalf of nominal defendants Mortgage Mart, Inc. and Realty Rentals, Inc.); and (6) Unjust Enrichment (derivatively on behalf of nominal defendants Mortgage Mart, Inc., Realty Rentals, Inc., and Sam Jadtar, LP.)

On July 29, 2024, defendants

and cross-complainants Jay H. Zimmerman and Thomas B. Zimmerman (collectively, "Defendants" or "Cross-Complainants") filed a Cross-Complaint against cross-defendants David R. Zimmerman, in his individual capacity, and in his capacity as trustee of the David R. Zimmerman Family Trust, ROES 1 through 50, and nominal cross-defendants Sam Jadtar, Mortgage Mart, Inc., and Realty Rentals, Inc. On September 11, 2024, Cross-Complainants filed a First Amended Cross-Complaint ("FAXC"), which included causes of action for: (1) Breach of Fiduciary Duties and (2) Declaratory Relief.

On December 9, 2024, Cross-Complainants

filed a Second Amended Cross-Complaint ("SAXC") against cross-defendants David R. Zimmerman, in his individual capacity, and in his capacity as trustee of the

David R. Zimmerman Family Trust, ROES 1 through 50, and nominal cross-defendants Sam Jadtar, Mortgage Mart, Inc., and Realty Rentals, Inc. The SAXC alleges causes of action for: (1) Breach of Fiduciary Duties and (2) Declaratory Relief.

On February 19, 2025, Cross-Complainants filed a Third Amended Cross-Complaint ("TAXC") for: (1) Breach of Fiduciary Duties and (2) Declaratory Relief.

On May 8, 2025, Cross-Complainants filed a Fourth Amended Cross-Complaint ("4AXC") for: (1) Breach of Fiduciary Duties and (2) Declaratory Relief. On June 26, 2025, the Court granted a motion to strike the 2017 allegations without leave to amend.

On October 13, 2025, the parties executed the Settlement Agreement, Mutual Release and Joint Escrow Instructions ("Settlement Agreement"). (Declaration of Gregg A. Martin ("Martin Decl."), ¶ 5, Exh. 1.) "As part of the Settlement Agreement, the Parties mutually agreed to appoint an appraiser to determine the value of [Realty Rentals, Inc. ("RRI")], and set the price for Jay and Tom's purchase of David's interest in that entity." (Martin Decl., ¶ 5, Exh. 1.)

Furthermore, the Settlement Agreement encompasses Section 19, which addresses attorneys' fees. (Martin Decl., ¶ 5, Exh. 1, § 19.) This provision states, "Each of the Parties agrees to bear his/its own attorneys' fees and costs; provided, however, that if any action or proceeding is instituted arising out of this Agreement, the prevailing Party(ies) shall be entitled to recover its costs and expenses, including reasonable attorneys' fees, in connection with such action or proceeding from the opposing Party(ies)." (Martin Decl., ¶ 5, Exh. 1, § 19.) On October 15, 2025, Plaintiff filed the Notice of Settlement of Entire Case.

On December 17, 2025, the appoint appraiser "issued his appraisal as to the value of RRI." (Martin Decl., ¶ 6.) Defendants contested this appraisal, asserting that the appraiser employed an incorrect methodology in determining RRI's fair market value. (Martin Decl., ¶ 6.)

On January 11, 2026, the parties executed the First Amendment to the Settlement Agreement “to proceed with the remainder of the Settlement Agreement while the Appraisal Dispute was being discussed[.]” (Martin Decl., ¶ 8, Exh. 2.)

On January 12, 2026, the parties participated in a voluntary settlement conference aimed at resolving the Appraisal Dispute; however, they were ultimately unable to reach an agreement. (Martin Decl., ¶¶ 9-10.)

On January 29, 2026, Defendants and Plaintiff filed cross-motions to enforce the terms of the Settlement Agreement. (Martin Decl., ¶ 10.) The Court granted Plaintiff’s motion and denied Defendants’ motion. (Martin Decl., ¶ 10.)

On April 9, 2026, the Court issued a judgment in favor of Plaintiff and against Defendants. (Martin Decl., ¶ 11, Exh. 3.) The Court concluded that “[t]he purchase price of David’s shares in RRI is determined to be \$499,016 based upon the December 17, 2025 appraisal prepared by Stonebridge Advisory, Inc., valuing RRI at \$1,497,048.” (Martin Decl., ¶ 11, Exh. 3.) Plaintiff was recognized as “the prevailing party for purposes of enforcing his rights under the Settlement Agreement.” (Martin Decl., ¶ 11, Exh. 3.) Additionally, Plaintiff, “upon application, shall have and recover from [Defendants] all attorneys’ fees and costs allowed by law.” (Martin Decl., ¶ 11, Exh. 3.)

LEGAL STANDARD

A prevailing party is entitled to recover costs, including attorney’s fees, as a matter of right. (Code Civ. Proc., §§ 1032, subd. (a)(4), (b); 1033.5.) Furthermore, attorney’s fees are allowable as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).)

Civil Code section 1717

states in pertinent part: “[i]n any action on a contract, where the contract specifically provides that attorney’s fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the

prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code, § 1717, subd. (a).)

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plaintiff's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488, quoting *Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass'n* (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (*Horsford v. Bd. of Trustees of California State Univ.* (2005) 132 Cal. App. 4th 359, 395.)

In

determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (*Ibid.*)

The factors that courts look at to

determine if a multiplier is reasonable are: "(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award" and (4) the success achieved. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49 (*Serrano*).)

No specific findings

reflecting the court's calculations are required. The record only needs to show that the attorney's fees were awarded according to the "lodestar" or "touchstone" approach. The court's focus in evaluating the facts should be to provide a fee award reasonably designed to completely compensate attorneys for the services provided. The starting point

for this determination is the attorney's time records. (*Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal.App.4th 359, 395-397 [verified time records entitled to credence absent clear indication they are erroneous].) However, California case law permits fee awards in the absence of detailed time sheets. (*Sommers v. Erb* (1992) 2 Cal.App.4th 1644, 1651; *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1810; *Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 103.) An experienced trial judge is in a position to assess the value of the professional services rendered in her court. (*Serrano, supra*, 20 Cal.3d 25 at p. 49.)

DISCUSSION

It is undisputed that Plaintiff is the prevailing party for the purpose of this motion and is therefore entitled to recover attorneys' fees, costs, and expenses in accordance with Section 19 of the Settlement Agreement. (Martin Decl., ¶ 5, Exh. 1, § 19; Motion, p. 8:1-20.) This provision states, "Each of the Parties agrees to bear his/its own attorneys' fees and costs; provided, however, that if any action or proceeding is instituted arising out of this Agreement, the prevailing Party(ies) shall be entitled to recover its costs and expenses, including reasonable attorneys' fees, in connection with such action or proceeding from the opposing Party(ies)." (Martin Decl., ¶ 5, Exh. 1, § 19.)

Plaintiff is seeking a total award of \$142,583.00, which was allegedly incurred to enforce his rights under the Settlement Agreement. (Motion, p. 6:3-15.) In response, Defendants assert that the Court should consider reducing the requested amount by the following: (1) \$16,921.00 (50% reduction) for matters that are partially unrelated; (2) \$1,236.75 (100% reduction) for matters that are fully unrelated; (3) \$7,535.70 (50% reduction) for instances of blocked billing; (4) \$8,382.60 (50% discount) due to excessive intraoffice communications; and (5) \$1,236.75 (100% discount) for clerical tasks. (Opp., p. 4:9-13.) Furthermore, Defendants contend that the Court should either significantly reduce or deny the motion based on "a great deal of overlapping/overstaffing on the Cross-Motions and other work." (Opp., p. 4:15-17.)

Request to Refer the Motion to the
Honorable Judge Ronald F. Frank

Defendants contend that, “since Judge Frank handled the Voluntary Settlement Conferences and ruled on the Cross-Motions, the Motion should be referred to Judge Frank, who is in the best position to rule on whether David is seeking excessive fees and the appropriate remedy.” (Opp., p. 4:19-21.) The Court DENIES this request, affirming its capacity to evaluate the reasonableness of the fees requested by Plaintiff, based on the submitted invoices, declarations, and accompanying arguments. There is no justification for delaying a ruling on this motion, as this Court possesses the requisite capability to adjudicate the matter effectively. Moreover, Judge Frank declined to hear this Motion.

Reasonableness of the Hourly Rates

Plaintiff requests the hourly rates detailed in the following table. (Martin Decl., ¶¶ 1, 13-15, 17-19, Exh. 4.)

Name

Position

Years of Experience

2025 Hourly Rate

2026 Hourly Rate

Brian H. Kang

(B Kang)

Partner

23

\$825.00

\$900.00

Ann S. Lee

(A Lee)

Partner

> 4

N/A

\$825.00

Gregg A. Martin

(G Martin)

Partner

> 30

\$765.00

\$765.00

Emily Avazian

(E Avazian)

Associate Attorney

> 3

\$550.00

\$598.98

Stacie Loiaza

(S Loiaza)

Paralegal

> 3

N/A

\$425.00

N Wordprocessing

Unknown

Unknown

N/A

\$350.00

To determine if an hourly rate is reasonable, courts consider the rates of similar attorneys in the community, as well as “the experience, skill, and reputation of the attorney requesting fees.” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.) In the present case, Gregg A. Martin’s declaration presents a detailed account of the qualifications and experience of four attorneys and one paralegal. (Martin Decl., ¶¶ 13-15, 17-19, Exh. 4.) With reference to this declaration and the Court’s own familiarity with the billing rates of Los Angeles-area counsel in similar cases, the Court finds that the rates are reasonable due to their experience and qualifications.

However, the Court observes that Martin has not provided any information regarding “N Wordprocessing.” It appears highly probable that “N Wordprocessing” refers to a computerized program, as the service it provided was “run tables.” (Martin Decl., Exh. 4.) The Court, therefore, declines to award any fees associated with a non-human entity. As a result, the Court reduces the requested fees by \$280.00 for the hours attributed to “N Wordprocessing.” (Martin Decl., Exh. 4.)

Incurred in Connection with Such Action
or Proceeding

Defendants contend that “[t]he Settlement Agreement only authorizes an award of prevailing party attorney fees for the proceedings, i.e. Cross Motions to Enforce the Settlement (and relating Voluntary Settlement Conferences).” (Opp., p. 7:12-14.) Thus, they further assert that “work on the Settlement Agreement, including Amendments, the SAM transfers, the dissolution of MMI or other undisclosed (or redacted) items are simply not recoverable.” (Opp., p. 7:18-19.)

Section 19 of the Settlement Agreement stipulates, “Each of the Parties agrees to bear his/its own attorneys’ fees and costs; provided, however, that if any action or proceeding is instituted arising out of this Agreement, the prevailing Party(ies) shall be entitled to recover its costs and expenses, including reasonable attorneys’ fees, in connection with such action or proceeding from the opposing Party(ies).” (Martin Decl., ¶ 5, Exh. 1, § 19.)

There is no language within the Settlement Agreement that restricts the recovery of attorneys’ fees solely to the cross-motions to enforce the settlement and the voluntary settlement conferences. Rather, the language encompasses “any action or proceeding is instituted arising out of this Agreement[.]” allowing for the recovery of fees incurred “in connection with such action or proceeding from the opposing Party(ies).” (Martin Decl., ¶ 5, Exh. 1, § 19.)

Upon reviewing the invoices and the proposed reductions, the Court determines that the hours requested pertain to proceedings related to the enforcement of the Settlement Agreement and were incurred in that context. Furthermore, Defendants have not provided any argument to illustrate how these hours were not incurred “in connection with such action or proceeding from the opposing Party(ies).”

Consequently, the requested reductions are DENIED.

Intra-office Communications

Defendants request that “the Court [] reduce David’s claimed fees for excessive intraoffice communications

by at least \$8,382,60 representing 50% discount as outlined in the Kane Declaration and Exhibit 4.” (Opp., p. 8:24-26.) However, Defendants do not provide any case law to support their assertion that intra-office communications are non-compensable. Furthermore, they fail to present any arguments to substantiate their claim that the communications are excessive. Consequently, this requested reduction is DENIED.

Excessive Hours

Defendants contend that “the Court being familiar with the Cross Motions and the parties work can and should make a further reduction in light for excessive attorney time spent on the Cross Motions.” (Opp., p. 9:1-3.) However, Defendants do not present an argument or evidence to substantiate the claim that the hours dedicated to the cross motions are indeed excessive. Consequently, this requested reduction is DENIED.

Clerical Tasks

Defendants contend that the Court should deduct \$1,236.75 for clerical tasks, asserting that “[c]lerical work cannot be claimed as attorney’s fees and requires a 100% deduction.” (Opp., p. 9:5.)

“[E]ntries ... including both attorney or paralegal work [] ordinarily would be compensable, such as drafting correspondence, discovery requests or law and motion documents, and tasks that could be characterized as noncompensable administrative tasks ... [include] filing and serving documents.” (Collins v. City of Los Angeles (2012) 205 Cal.App.4th 140, 159.) Furthermore, “necessary support services for attorneys, e.g., secretarial and paralegal services, are includable within an award of attorney fees.” (Salton Bay Marina, Inc. v. Imperial Irrigation Dist. (1985) 172 Cal.App.3d 914, 951.)

Defendants fail to articulate any rationale demonstrating that the proposed reductions solely comprise non-compensable clerical tasks. Consequently, this requested reduction is DENIED.

Redactions

Defendants contends that the Court should impose a 20% reduction due to Plaintiff's "haphazard and inconsistent redactions rendering many of the entries impossible to allocate between reimbursable and [non-]reimbursable fees." (Opp., p. 8:8-10.)

"The court [] excluded any award with respect to billings that did not provide sufficient 'information' for it to 'tell what's going on.' ... We therefore find no manifest abuse of discretion in the court's award. ... The trial court specified ... that it awarded no fees with respect to billing items it considered to be excessively redacted, and that it resolved any doubts about the appropriateness of billing entries in favor of [opposing party]." (Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker (2016) 2 Cal.App.5th 252, 263.)

Here, after reviewing the redactions cited by Defendants, the Court finds it possible to differentiate between reimbursable and non-reimbursable fees. The Court finds that none of the requested hours are so haphazard or inconsistent as to obscure their relevance. Moreover, none of the tasks appear to be non-reimbursable in nature.

Consequently, this requested reduction is DENIED.

Blocked Billing

Defendants contend that Plaintiff's use of block billing warrants a 20% reduction in the fees requested. (Opp., p. 7:24-25.)

The use of block billing is not per se objectionable. Block billing is only problematic "when the practice prevents them from discerning which tasks are compensable and which are not." (Heritage Pac. Fin. LLC v. Monroy (2013) 215 Cal.App.4th 972, 1010.) Because of block billing, courts find it difficult to assess the reasonableness of the time spent on individual tasks, such that courts must make a determination without the information that would result from non-block billed entries.

Although many of the time

entries cited are combined or “block billed” , none of the listed entries are non-compensable. Furthermore, Defendants have not demonstrated that any of the requested hours should be deemed non-compensable, as discussed above.

Consequently, this requested reduction is DENIED.

As such, Plaintiff’s motion for Attorney’s Fees in the reduced amount of \$142,303.00 (\$142,583.00 - \$280.00), including Plaintiff’s preparation of a reply and attendance at the hearing is GRANTED.

ORDERS

1)
Plaintiff and Cross-Defendant David R. Zimmerman’s Motion for Attorneys’ Fees is GRANTED in the reduced amount of \$142,303.00.

2)
Defendants and Cross-Complainants Jay H. Zimmerman and Thomas B. Zimmerman’s Request to Refer the Motion to the Honorable Judge Ronald F. Frank is DENIED.

3)
Plaintiff is ordered to give notice of the Court’s ruling.

IT IS SO ORDERED.

DATED: July 15, 2026

Tamara
Hall

Judge
of the Superior Court